

Ex.No.1095/2023

16/11/2023

ORDER ON I.A.No.I

The decree holders have filed I.A.No.I under
Order XXI Rule 35 read with Section 151 of the C.P.C.

to issue delivery warrant to take possession regarding portion of ground floor of the decree schedule property.

2. In this proceeding even after service of notice, the judgment debtor remained absent. The suit filed by the decree holders in O.S.No.7750/2022 for specific performance of contract came to be decreed against the defendant / judgment debtor in pursuance of filing of joint memo and as per order dated 11.2.2023.

3. In this proceeding the decree holders got obtained registered sale deed through the process of Court. They have produced copy of the registered sale deed. Hence, in pursuance of the decree, the decree holders are entitled to take possession of the decree schedule property from the judgment debtor. Hence, proceed to pass the following :

ORDER

I.A.No.I filed by the decree holders under Order XXI Rule 35 read with Section 151 of the C.P.C. is allowed.

Issue delivery warrant directing the judgment debtor to hand over possession of ground floor comprising

of two bedrooms, hall, kitchen and one bathroom with toilet of the decree schedule premises in favour of the decree holder.

Await report. Call on

(Lakshminarayana Bhat.K),
XLII ACC&S Judge, Bengaluru City.